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Consider a few specific examples: In Pennsylvania, a person resists arrest “if, with the intent of preventing a public servant from effecting a lawful arrest or discharging any other duty, the person creates a *substantial risk* of bodily injury to the public servant or anyone else.” 18 Pa. Cons. Stat. §5104 (2015) (emphasis added). In Tennessee, kidnapping is defined as false imprisonment “under circumstances exposing the other person to *substantial risk* of bodily injury.” Tenn. Code Ann. §39–13–303(a) (2018) (emphasis added). In New York, reckless endangerment occurs when a person “recklessly engages in conduct which creates a *substantial risk* of serious physical injury to another person.” N. Y. Penal Law Ann. §120.20 (emphasis added). And in Maryland, neglect of a minor is defined as “the intentional failure to provide necessary assistance and resources for the physical needs or mental health of a minor that creates a *substantial risk* of harm to the minor’s physical health or a *substantial risk* of mental injury to the minor.” Md. Crim. Law Code Ann. §3–602.1(a)(5)(i) (2012) (emphasis added).

The above examples demonstrate that substantial-risk standards like the one in §924(c)(3)(B) are a traditional and common feature of criminal statutes. As the Eleventh Circuit succinctly stated, there “is nothing remarkable about asking jurors to make that sort of risk determination—and, if necessary, requiring judges to instruct jurors on the meaning of terms like ‘substantial’ and ‘physical force.’” *Ovalles v. United States*, 905 F.3d 1231, 1250, n. 8 (2018) (en banc). That is “exactly how similar questions have been resolved for centuries and are resolved every day in courts throughout the country.” *Ibid.*

Ann. §2923.162(C)(2) (Lexis 2014) (“substantial risk of physical harm”); R. I. Gen. Laws §11–47–61 (2002) (“substantial risk of death or serious injury”); Wash. Rev. Code §9A.36.045(1) (2018) (“substantial risk of death or serious physical injury”); W. Va. Code Ann. §61–7–12 (2014) (“substantial risk of death or serious bodily injury”).

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A statute is unconstitutionally vague only if “it fails to give ordinary people fair notice of the conduct it punishes,” or is “so standardless that it invites arbitrary enforcement.” *Johnson*, 576 U. S., at 595. Section 924(c)(3)(B) is not unconstitutionally vague. To reiterate, § 924(c)(3)(B) defines “crime of violence” as “an offense that is a felony and . . . that by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.” Section 924(c)(3)(B) affords people of ordinary intelligence ample notice that they may be punished if they carry or use a gun while engaging in criminal conduct that presents a risk that physical force may be used. There “is a whole range of conduct that anyone with at least a semblance of common sense would know” is covered by § 924(c)(3)(B). *Chicago v. Morales*, 527 U. S. 41, 114 (1999) (THOMAS, J., dissenting) (internal quotation marks omitted). And prosecutors, defense attorneys, judges, and juries are well equipped to enforce and defend § 924(c)(3)(B) prosecutions in a principled and predictable way—just as they have for decades with many other substantial-risk criminal statutes. As Judge Niemeyer wrote in his separate opinion in the Fourth Circuit, “the parties in those cases had little difficulty understanding, enforcing, or defending the § 924(c)(1) charges at issue.” *United States v. Simms*, 914 F. 3d 229, 264 (2019).¹⁸

In short, § 924(c)(3)(B) is a garden-variety, substantial-risk criminal law. Section 924(c)(3)(B) is not unconstitutionally vague.

II

This case therefore should be straightforward. But the Court complicates things by engaging in a two-step dance that ends with the Court concluding that § 924(c)(3)(B) is unconstitutionally vague.

¹⁸ Judge Niemeyer’s opinion was joined by Judges Wilkinson, Duncan, Agee, Keenan, and Quattlebaum.

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The Court's first step is to construe § 924(c)(3)'s substantial-risk prong to require an ordinary-case categorical approach rather than a conduct-specific approach. In other words, the Court says that a defendant's guilt or innocence under § 924(c)(3)'s substantial-risk prong hinges on a judge's assessment of how a *hypothetical defendant* would ordinarily commit the underlying crime. In the Court's view, a defendant's guilt or innocence under § 924(c)(3)'s substantial-risk prong does not depend on a jury's finding about how the *actual defendant* actually committed the underlying crime.

The Court's second step is based on the Court's decisions in *Johnson* and *Dimaya*. The Court says that the ordinary-case categorical approach makes § 924(c)(3)(B) unconstitutionally vague.

For purposes of this case, the Court's error is its first step—that is, in construing the substantial-risk prong of § 924(c)(3) to require an ordinary-case categorical approach. For three reasons, I disagree with the Court's analysis. First, the Court's justifications in *Johnson* and *Dimaya* for adopting the categorical approach do not apply in the context of § 924(c). Second, the text of § 924(c)(3)(B) is best read to focus on the actual defendant's actual conduct during the underlying crime, not on a hypothetical defendant's imagined conduct during an ordinary case of the underlying crime. Third, even if the text were ambiguous, the constitutional avoidance canon requires that we interpret the statute to focus on the actual defendant's actual conduct.

I will address those three points in Parts II–A, II–B, and II–C.

A

According to the Court, if § 924(c)(3)(B) focused on the defendant's conduct during the underlying crime, then it would *not* be unconstitutionally vague. But § 924(c)(3)(B), as the Court reads it, focuses on a hypothetical defendant's conduct during an ordinary case of the underlying crime. As a re-

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sult, the Court says that § 924(c)(3)(B) *is* unconstitutionally vague.

But it makes little sense, as I see it, to say that § 924(c)(3)(B)'s substantial-risk inquiry focuses on whether *a hypothetical defendant's imagined conduct* during an ordinary case of the crime creates a substantial risk that physical force may be used, rather than on whether *the actual defendant's actual conduct* during the actual crime created a substantial risk that physical force may be used. Why would we interpret a federal law that criminalizes current-offense conduct to focus on a hypothetical defendant rather than on the actual defendant? As Judge Newsom cogently wrote for the Eleventh Circuit en banc majority, "If you were to ask John Q. Public whether a particular crime posed a substantial risk of violence, surely he would respond, 'Well, tell me how it went down—*what happened?*'" *Ovalles*, 905 F. 3d, at 1241.¹⁹

Why does the Court read the substantial-risk prong in such an unnatural way? The Court explains that *Johnson* interpreted similar substantial-risk language to require the ordinary-case categorical approach. See 576 U. S., at 603–605. A plurality of the Court did the same in *Dimaya*. See 584 U. S., at 160–162. And the Court today casts this case as the third installment in a trilogy with a predictable ending, one that was supposedly foreordained by *Johnson* and *Dimaya*.

The gaping hole in the Court's analysis, in my view, is that *Johnson* and *Dimaya* addressed statutes that imposed penalties based on a defendant's *prior* criminal convictions.

In *Johnson*, the Court interpreted a definition of "violent felony" that was used in sentencing proceedings to classify prior convictions as predicates for stricter sentences. See §§ 924(e)(1), (e)(2)(B). In *Dimaya*, the Court interpreted a

¹⁹ Judge Newsom's majority opinion was joined by Chief Judge Ed Carnes and Judges Tjoflat, Marcus, William Pryor, Rosenbaum, Branch, and Hull.

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definition of “crime of violence” that was used in immigration proceedings to classify prior convictions as predicates for more severe immigration consequences. See § 16 (defining “crime of violence”); 8 U. S. C. § 1101(a)(43)(F) (incorporating 18 U. S. C. § 16); 8 U. S. C. § 1227(a)(2)(A)(iii) (deportation); §§ 1229b(a)(3), (b)(1)(C) (ineligibility for cancellation of removal and adjustment of status).

In interpreting those statutes, the Court employed the ordinary-case categorical approach to assess an individual’s *past* convictions. And application of that categorical approach, the Court then said, rendered the statutes at issue in those cases unconstitutionally vague. See *Dimaya*, 584 U. S., at 160–162; *Johnson*, 576 U. S., at 597–598.²⁰

Two important principles drove the Court’s adoption of the categorical approach in the *prior*-conviction context in *Johnson* and *Dimaya*.

First, in the prior-conviction cases, the Court emphasized that the categorical approach avoids the difficulties and inequities of relitigating “past convictions in minitrials conducted long after the fact.” *Moncrieffe v. Holder*, 569 U. S. 184, 200–201 (2013). Without the categorical approach, courts would have to determine the underlying conduct from years-old or even decades-old documents with varying levels of factual detail. See *Taylor v. United States*, 495 U. S. 575, 601–602 (1990). The factual statements that are contained in those documents are often “prone to error.” *Mathis v. United States*, 579 U. S. 500, 512 (2016). The categorical approach avoids the unfairness of allowing inaccuracies to “come back to haunt the defendant many years down the

²⁰ Tellingly, the Government in *Johnson* and *Dimaya* did not dispute that the categorical approach was the proper method of interpreting the statutes at issue. See *Sessions v. Dimaya*, 584 U. S. 148, 163–164 (2018) (plurality opinion); *Johnson v. United States*, 576 U. S. 591, 604–605 (2015). In this case, the Government strenuously disputes the applicability of the categorical approach precisely because the inquiry is not about past convictions.

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road.” *Ibid.* The Court has echoed that reasoning time and again. See, *e. g.*, *Dimaya*, 584 U. S., at 166 (plurality opinion); *Johnson*, 576 U. S., at 604–605; *Descamps v. United States*, 570 U. S. 254, 270 (2013); *Chambers v. United States*, 555 U. S. 122, 125 (2009).

Second, in the prior-conviction cases, the Court insisted on the categorical approach to avoid “Sixth Amendment concerns.” *Descamps*, 570 U. S., at 269. The Sixth Amendment, as interpreted by this Court’s precedents, does not allow a judge (rather than a jury) to make factual determinations that increase the maximum penalty. See *Apprendi v. New Jersey*, 530 U. S. 466, 490 (2000). The Court has read its Sixth Amendment precedents to require the categorical approach. Under the categorical approach, the judge looks only to the fact of conviction and the statutory definition of the prior offense. The Court has reiterated those Sixth Amendment concerns in countless categorical-approach cases. See, *e. g.*, *Dimaya*, 584 U. S., at 164 (plurality opinion); *Mathis*, 579 U. S., at 511–512; *Shepard v. United States*, 544 U. S. 13, 24–25 (2005) (plurality opinion); *Taylor*, 495 U. S., at 601.

In short, the Court in *Johnson* and *Dimaya* employed something akin to the constitutional avoidance doctrine to read the statutes at issue to avoid practical and Sixth Amendment problems. In the words of JUSTICE THOMAS, the “categorical approach was never really about the best reading of the text.” *Dimaya*, 584 U. S., at 230–231 (dissenting opinion). As Judge Raggi has perceptively stated: “[C]onstitutional avoidance informed the original categorical-approach mandate.” *United States v. Barrett*, 903 F. 3d 166, 179 (CA2 2018).

But neither of the two reasons identified in *Johnson* and *Dimaya* applies to 18 U. S. C. § 924(c)(3)(B)—not even a little.

First, § 924(c) does not require examination of old conduct underlying a *prior* conviction. Section 924(c) operates entirely in the present. In a § 924(c) prosecution, there are

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ordinarily two charged crimes: the underlying crime and the § 924(c) offense. Here, for example, the defendants were charged with conspiracy to commit robbery and with the § 924(c) offense. The defendant's conduct during the underlying crime is part of the § 924(c) offense. The conduct charged in the § 924(c) offense is in front of the jury (if the case goes to trial) or accepted by the defendant in the plea agreement (if the defendant pleads guilty). The indictment must allege specific offense conduct, and that conduct must be proved with real-world facts in order to obtain a conviction. There is no need to worry about stale evidence or unavailable witnesses. Nor is there any need to worry about inaccuracies in years-old or decades-old documents coming back to haunt the defendant.

Second, § 924(c) likewise raises no Sixth Amendment concerns. A jury will find the facts or, if the case ends in a guilty plea, the defendant will accept the facts in the plea agreement. For the § 924(c) charge, as relevant here, a jury must find that the defendant's conduct "by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense." The defendant has the opportunity to contest the relevant facts either at the trial or in plea negotiations. No Sixth Amendment issue arises in a § 924(c) prosecution.

No practical or Sixth Amendment problems exist with § 924(c)(3)(B). Indeed, the Court itself acknowledges that "a case-specific approach wouldn't yield the same practical and Sixth Amendment complications" that arose in *Johnson* and *Dimaya*. *Ante*, at 454.

We should recognize that *Johnson* and *Dimaya* dealt with an entirely different context: *prior* convictions. There is no need to follow *Johnson* and *Dimaya* off the cliff here. We should read § 924(c)(3)(B) like the dozens of other substantial-risk statutes in federal and state criminal law: to focus on the actual defendant's actual conduct during the actual un-

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derlying crime, not on a hypothetical defendant's imagined conduct during an ordinary case of that crime.

B

Now to the statutory text of § 924(c)(3)(B). Even though the context here is current-offense conduct, not past convictions, the Court says that the statutory language nonetheless compels a focus on a hypothetical defendant's imagined conduct, not on the actual defendant's actual conduct. I disagree. Criminal defendants are usually punished based on what they actually did, not based on what a hypothetical defendant might have done.

To begin with, the text of § 924(c)(3)(B) must be interpreted against the backdrop of traditional criminal-law practice. As described above, substantial-risk statutes are commonplace in federal and state criminal law. Those statutes ordinarily call for examination of the actual defendant's actual conduct during the actual crime. The Court does not identify a single self-contained federal or state law that defines the *actus reus* of the crime based on the imagination of the judge about a hypothetical defendant, rather than on the evidence before the jury about the actual defendant.

This Court applied an exception in *Johnson* and *Dimaya* for substantial-risk statutes that impose sentencing and other penalties based on *past* convictions. But that is an exception for past convictions, not a rule for current-offense conduct. Section 924(c)(3)(B) must be read in line with the traditional, common practice of focusing on the actual defendant's actual conduct during the underlying crime.

With that background, I turn to the precise text of § 924(c)(3). To repeat, the text of § 924(c)(3) provides: A defendant may not use or carry a firearm during and in relation to, or possess a firearm in furtherance of, "an offense that is a felony and" that either (A) "has as an element the use, attempted use, or threatened use of physical force against the person or property of another," or (B) "by its nature,

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involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense.”

I will focus on four particular aspects of the statutory text of § 924(c)(3)(B).

First, start with the term “offense.” Section 924(c)(3) has two prongs under which a defendant might qualify for a § 924(c) conviction: first, if the underlying crime automatically qualifies as a crime of violence based on its elements; and, second, if the defendant’s conduct during the underlying crime created a substantial risk that physical force may be used, even if the underlying crime by its elements does not constitute a crime of violence.

The term “offense” applies to both prongs. In the elements prong, the term refers to the elements of the underlying crime. In the substantial-risk prong, the term refers to the defendant’s conduct during the underlying crime. That is entirely commonplace and sensible.

Reading “offense” in that commonsense way follows from the Court’s precedents interpreting the term “offense.” As the Court has explained many times, the term “offense” may “sometimes refer to a generic crime” and may “sometimes refer to the specific acts in which an offender engaged on a specific occasion.” *Nijhawan v. Holder*, 557 U. S. 29, 33–34 (2009).²¹ Indeed, the single term “offense” can refer to both in the same statutory scheme. See, *e. g.*, *id.*, at 40; *id.*, at 38 (listing other examples); *United States v. Hayes*, 555 U. S. 415, 421–422 (2009).

In *United States v. Hayes*, for example, the Court interpreted the term “misdemeanor crime of domestic violence.” That term was defined as “an offense” that (1) “has, as an element, the use or attempted use of physical force, or the

²¹ More generally, this Court has often said that “identical language may convey varying content” in the same statute, based on context. *Yates v. United States*, 574 U. S. 528, 537 (2015) (plurality opinion); see also *Utility Air Regulatory Group v. EPA*, 573 U. S. 302, 319–320 (2014).

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threatened use of a deadly weapon,” and (2) was “committed by” a person who has a particular relationship with the victim. § 921(a)(33)(A). The Court interpreted the “offense that . . . has, as an element” language in that provision to focus on the legal prohibition, and interpreted the “offense . . . committed by” language to focus on the defendant’s conduct. See *Hayes*, 555 U. S., at 421–422. In other words, the term “offense” was used once but had two different meanings as applied to the two different parts of the statutory provision.

Another example is the Immigration and Nationality Act. That statute defines “aggravated felony” in part as “an offense” (1) that “involves fraud or deceit” and (2) “in which the loss to the victim or victims exceeds \$10,000.” 8 U. S. C. § 1101(a)(43)(M)(i). The Court interpreted the “offense that . . . involves fraud or deceit” language to focus on the legal prohibition. See *Kawashima v. Holder*, 565 U. S. 478, 483 (2012). And the Court interpreted the “offense . . . in which the loss” language to focus on the individual’s conduct. See *Nijhawan*, 557 U. S., at 40. Again, the term “offense” was used once, but had two different meanings as applied to the two different parts of the statutory provision.

Section 924(c)(3) is the same kind of statutory provision. It likewise encompasses both the legal prohibition (in subpart (A)) and the defendant’s actual conduct (in subpart (B)). The term “offense” was read in *Hayes*, *Kawashima*, and *Nijhawan* to encompass both the legal prohibition and the defendant’s conduct. The term should be read that same way here.

Moreover, if the substantial-risk prong of § 924(c)(3) requires assessing a hypothetical defendant’s conduct rather than the actual defendant’s conduct, then there would be little daylight between the elements prong and the substantial-risk prong. After all, a crime is defined by its elements. The elements tell you what happens in an ordinary case of a crime. To imagine how a hypothetical defendant would

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have committed an ordinary case of the crime, you would presumably look back to the elements of the crime. But doing that under the substantial-risk prong—as the Court would do—would just duplicate the inquiry that already occurs under the elements prong. That would defeat Congress’ purpose in adding the substantial-risk prong to § 924(c)(3)—namely, covering defendants who committed crimes that are not violent by definition but that are committed by particular defendants in ways that create a risk of violence. There is no reason to think that Congress meant to duplicate the elements prong in the substantial-risk prong.²²

The Court usually tries to avoid an interpretation of a statutory provision that would make the provision redundant and accomplish virtually nothing. See, e.g., *Republic of Sudan v. Harrison*, 587 U. S. 1, 11–12 (2019); *Dastar Corp. v. Twentieth Century Fox Film Corp.*, 539 U. S. 23, 35 (2003); *Mackey v. Lanier Collection Agency & Service, Inc.*, 486 U. S. 825, 837 (1988); A. Scalia & B. Garner, *Reading Law: The Interpretation of Legal Texts* 174–179 (2012); W. Eskridge, *Interpreting Law: A Primer on How to Read Statutes and the Constitution* 112–114 (2016). We should heed that principle here, and recognize that the term “offense” in the substantial-risk prong refers to the actual defendant’s conduct during the underlying crime.

In short, the term “offense” in § 924(c)(3), as applied to the substantial-risk prong, focuses on the actual defendant’s actual conduct, not on a hypothetical defendant’s imagined conduct.

Second, § 924(c)(3)(B) asks whether the defendant’s offense “by its nature” involves a risk that physical force may be used. In a vacuum, the “nature” of an offense could be

²² This duplication point is icing on a textual cake already frosted. In other words, our interpretation of the term “offense” is informed by the text and by our precedents. Our interpretation stands with or without the duplication argument.

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either “the metaphysical ‘nature’ of the offense” or “the underlying facts of the offense.” *Dimaya*, 584 U. S., at 227 (THOMAS, J., dissenting). But that is because the term “offense” could refer to a legal prohibition or to the defendant’s actual conduct. As explained above, however, the term “offense” as applied to the substantial-risk prong refers to the actual defendant’s conduct during the underlying crime. It follows that “by its nature” focuses on the nature of the actual defendant’s conduct during the crime. The phrase “by its nature” is linked to the term “offense.” If the term “offense” refers to the defendant’s actual conduct, then “by its nature” also focuses on the defendant’s actual conduct.

Under the conduct-specific approach to the substantial-risk prong, the “by its nature” language simply means that the Government has to show more than a defendant’s proclivity for crime and more than the mere fact that the defendant was carrying a gun. The Government has to show that the defendant’s conduct by its nature *during the crime* created a substantial risk that physical force may be used.

In short, as JUSTICE THOMAS has pointed out, it “is entirely natural to use words like ‘nature’ and ‘offense’ to refer to an offender’s actual underlying conduct.” *Ibid.* So it is here.

Third, § 924(c)(3)(B) asks whether the defendant’s conduct “involves” a substantial risk that physical force may be used. In *Taylor v. United States*, a case involving a prior-conviction statutory provision, the Court pointed to the *absence* of the word “involved” in adopting a categorical approach. 495 U. S., at 600. And in *Nijhawan v. Holder*, another case involving a prior-conviction statutory provision, the Court explained that the word “involves” did not support a categorical approach. 557 U. S., at 36. Here, unlike in *Taylor*, the statute does use the word “involves.” Under *Taylor*’s reasoning, the inclusion of the word “involves” in § 924(c)(3)(B) supports the conclusion that § 924(c)(3)(B) employs a conduct-specific approach rather than a categorical approach.

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Fourth, § 924(c)(3)(B)’s use of the phrase “in the course of committing the offense” indicates that the proper focus is on the actual defendant’s actual conduct, not on a hypothetical defendant’s imagined conduct. After all, the underlying offense was committed by the actual defendant, not by a hypothetical defendant. It strains common sense to think that the “in the course of committing the offense” language in § 924(c)(3)(B) contemplates an inquiry into a hypothetical defendant’s conduct during an ordinary case of the crime.

Importantly, the law at issue in *Johnson* did not have the “in the course of committing the offense” language. § 924(e)(2)(B)(ii). That is a major textual difference between the law in *Johnson* on the one hand and § 924(c)(3)(B) on the other hand. And that textual distinction further shows that § 924(c)(3)(B) focuses on the actual defendant’s actual conduct.

In short, those four textual indicators, while not all entirely one-sided, together strongly suggest that § 924(c)(3)(B) focuses on the actual defendant’s actual conduct during the actual crime, not on a hypothetical defendant’s imagined conduct during an ordinary case of the crime.

On top of all the language in the statute, § 924(c)(3)(B) does *not* contain the critical term that ordinarily marks a categorical approach.

Section 924(c)(3)(B) does not use the term “conviction.” This Court has historically recognized the term “conviction” as a key textual driver of the categorical approach. In cases such as *Taylor* and *Johnson*, the Court zeroed in on the word “convictions.” See *Johnson*, 576 U. S., at 604–605; *Taylor*, 495 U. S., at 600; see also *Mathis*, 579 U. S., at 511; *Moncrieffe*, 569 U. S., at 191; *Ovalles*, 905 F. 3d, at 1245. So too, the Court in *Leocal v. Ashcroft* emphasized that the text of the INA that incorporated § 16(b) used the term “convicted.” 543 U. S. 1, 4, 7 (2004).²³

²³ In *Leocal*, the Court interpreted § 16(b) to require a categorical approach. But unlike § 924(c)(3)(B), that statutory provision applied in the context of past convictions. See 8 U. S. C. §§ 1101(a)(43)(F), 1227(a)(2)

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The term “conviction” is nowhere to be found in the text of § 924(c)(3)(B). That should not come as a surprise, given that § 924(c)(3)(B) is a substantive criminal offense concerned with the defendant’s current-offense conduct. The absence of the term “conviction” in § 924(c)(3)(B) strongly supports a conduct-specific approach.

Put simply, the textual clues—both the words that are used and the words that are not used—point strongly to the conclusion that § 924(c)(3)(B) requires a jury to assess the actual defendant’s actual conduct during the underlying crime. The conclusion becomes overwhelming when considered against the general background of substantial-risk statutes. To be sure, a statute can always be written more clearly. But here, the textual toolkit leads decisively to that conclusion.

C

But after all of that, suppose that you are not convinced. Suppose that you think that this case is still a close call on the text, even with the background of substantial-risk statutes and the Court’s precedents. Indeed, suppose you ultimately disagree with the above analysis of the text. Even so, the Government still wins—unless it can be said that § 924(c)(3)(B) *unambiguously* requires a categorical approach. Under the constitutional avoidance canon, the precise question before us is not whether § 924(c)(3)(B) is best read to require a conduct-specific approach, but rather (as the Court’s cases say) whether § 924(c)(3)(B) can reasonably, plausibly, or fairly possibly be interpreted to require a conduct-specific approach. The answer to that question is easy. Yes. See *Hooper v. California*, 155 U.S. 648, 657

(A)(iii); Sentencing Reform Act of 1984, § 217(a), 98 Stat. 2021; Comprehensive Crime Control Act of 1984, § 1202, 98 Stat. 2151. To be sure, § 16(b) was once incorporated into § 924(c). But in 1986, Congress severed the two provisions and included a standalone “crime of violence” definition in § 924(c). For those two reasons, § 924(c)(3)(B) need not and should not be interpreted in the same way as § 16(b).

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(1895) (“reasonable”); *Clark v. Martinez*, 543 U. S. 371, 380 (2005) (“plausible”); *Skilling v. United States*, 561 U. S. 358, 406 (2010) (“fairly possible” (internal quotation marks omitted)).

The Court says that if § 924(c)(3)(B) requires the categorical approach, then it is unconstitutionally vague. But the Court also says that if § 924(c)(3)(B) focuses on the defendant’s actual conduct, then it is constitutionally permissible. As the Court puts it, “a case-specific approach would avoid the vagueness problems that doomed the statutes in *Johnson* and *Dimaya*.” *Ante*, at 454. So the entire ball game is whether it is fairly possible to interpret § 924(c)(3)(B) to require a conduct-specific approach. It surely is at least fairly possible.

It is an elementary principle of statutory interpretation that an ambiguous statute must be interpreted, whenever possible, to avoid unconstitutionality. See generally Scalia, *Reading Law: The Interpretation of Legal Texts*, at 247–251; Eskridge, *Interpreting Law: A Primer on How to Read Statutes and the Constitution*, at 317–322. That uncontroversial principle of statutory interpretation dates back to the Founding era. See *Mossman v. Higginson*, 4 Dall. 12, 14 (1800). As JUSTICE THOMAS has explained, the traditional doctrine of constitutional avoidance commands “courts, when faced with two plausible constructions of a statute—one constitutional and the other unconstitutional—to choose the constitutional reading.” *Clark*, 543 U. S., at 395 (dissenting opinion). This Court’s duty is “not to destroy the Act if we can, but to construe it, if consistent with the will of Congress, so as to comport with constitutional limitations.” *Civil Service Comm’n v. Letter Carriers*, 413 U. S. 548, 571 (1973). In discharging that duty, “every reasonable construction must be resorted to, in order to save a statute from unconstitutionality.” *Hooper*, 155 U. S., at 657.

This Court’s longstanding practice of saving ambiguous statutes from unconstitutionality where fairly possible af-

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fords proper respect for the representative branches of our Government. The Court has explained that “a presumption never ought to be indulged, that congress meant to exercise or usurp any unconstitutional authority, unless that conclusion is forced upon the Court by language altogether unambiguous.” *United States v. Coombs*, 12 Pet. 72, 76 (1838).

In countless cases for more than 200 years, this Court has recognized the principle that courts should construe ambiguous laws to be consistent with the Constitution. See, *e.g.*, *McDonnell v. United States*, 579 U. S. 550, 576–577 (2016); *Skilling*, 561 U. S., at 405–409; *Clark*, 543 U. S., at 380–382; *Edmond v. United States*, 520 U. S. 651, 658 (1997); *Concrete Pipe & Products of Cal., Inc. v. Construction Laborers Pension Trust for Southern Cal.*, 508 U. S. 602, 628–630 (1993); *New York v. United States*, 505 U. S. 144, 170 (1992); *Rust v. Sullivan*, 500 U. S. 173, 190–191 (1991); *Public Citizen v. Department of Justice*, 491 U. S. 440, 465–467 (1989); *Communications Workers v. Beck*, 487 U. S. 735, 762 (1988); *Edward J. DeBartolo Corp. v. Florida Gulf Coast Building & Constr. Trades Council*, 485 U. S. 568, 575–578 (1988); *St. Martin Evangelical Lutheran Church v. South Dakota*, 451 U. S. 772, 780–781 (1981); *Letter Carriers*, 413 U. S., at 571; *Machinists v. Street*, 367 U. S. 740, 749–750 (1961); *Ashwander v. TVA*, 297 U. S. 288, 348 (1936) (Brandeis, J., concurring); *ICC v. Oregon-Washington R. & Nav. Co.*, 288 U. S. 14, 40–42 (1933); *Crowell v. Benson*, 285 U. S. 22, 62–63 (1932); *Lucas v. Alexander*, 279 U. S. 573, 577–578 (1929); *Richmond Screw Anchor Co. v. United States*, 275 U. S. 331, 345–346 (1928); *Blodgett v. Holden*, 275 U. S. 142, 148–149 (1927) (opinion of Holmes, J.); *Missouri Pacific R. Co. v. Boone*, 270 U. S. 466, 471–472 (1926); *Linder v. United States*, 268 U. S. 5, 17–18 (1925); *Panama R. Co. v. Johnson*, 264 U. S. 375, 390 (1924); *Texas v. Eastern Texas R. Co.*, 258 U. S. 204, 217 (1922); *Baender v. Barnett*, 255 U. S. 224, 225–226 (1921); *United States v. Jin Fuey Moy*, 241 U. S. 394, 401 (1916); *United States ex rel. Attorney General v. Delaware & Hud-*

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son Co., 213 U. S. 366, 407–408 (1909); *Hooper*, 155 U. S., at 657; *Grenada County Supervisors v. Brogden*, 112 U. S. 261, 268–269 (1884); *Coombs*, 12 Pet., at 76; *Parsons v. Bedford*, 3 Pet. 433, 448–449 (1830); *Mossman*, 4 Dall., at 14.

To be clear, the case before us is not a case of avoiding *possible* unconstitutionality. This is a case of avoiding *actual* unconstitutionality. There is a debate about the former practice. There is no real debate about the latter rule. And it is the latter rule of statutory interpretation at issue here.

Section 924(c)(3)(B) is best read to focus on the defendant's actual conduct. But at a minimum—given the text, the background of substantial-risk laws, and the relevant precedents—it is fairly possible to interpret § 924(c)(3)(B) to focus on the defendant's actual conduct. Because that reasonable interpretation would save § 924(c)(3)(B) from unconstitutionality, this case should be very straightforward, as Judge Newsom explained in his thorough majority opinion in the Eleventh Circuit and as Judge Niemeyer and Judge Richardson explained in their persuasive separate opinions in the Fourth Circuit. *Ovalles*, 905 F. 3d, at 1251; *Simms*, 914 F. 3d, at 272 (opinion of Niemeyer, J.); *id.*, at 272–277 (opinion of Richardson, J.). We should prefer the constitutional reading over the unconstitutional reading.

The Court did not apply constitutional avoidance in *Johnson* and *Dimaya*. Why not? In those two cases, the Court explained, the canon of constitutional avoidance was essentially rendered a nullity. That is because, as the Court described the situation, the Court was between a rock and a hard place. The categorical approach would have led to Fifth Amendment vagueness concerns, whereas applying the conduct-specific approach would have led to Sixth Amendment jury-trial concerns. See *Dimaya*, 584 U. S., at 164 (plurality opinion).

Here, by contrast, the Court is not between a rock and a hard place. Applying the categorical approach to

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§ 924(c)(3)(B) would lead to vagueness concerns, whereas applying the conduct-specific approach would lead to no constitutional concerns.

Faced with a choice between a rock and constitutionality, the Court chooses the rock. I do not understand that choice.

The Court offers two related reasons for its choice to run the statute into a rock. Neither reason holds up.

First, the Court concludes that the constitutional avoidance canon must yield to the rule of lenity. That argument disregards the Court’s oft-repeated statements that the rule of lenity is a tool of last resort that applies “only when, after consulting traditional canons of statutory construction,” grievous ambiguity remains. *Hayes*, 555 U. S., at 429 (internal quotation marks omitted); see also, *e. g.*, *Ocasio v. United States*, 578 U. S. 282, 295, n. 8 (2016) (“after seizing everything from which aid can be derived” (internal quotation marks omitted)); *Muscarello v. United States*, 524 U. S. 125, 138 (1998) (same); *United States v. Wells*, 519 U. S. 482, 499 (1997) (same); *Reno v. Koray*, 515 U. S. 50, 65 (1995) (same); *United States v. Shabani*, 513 U. S. 10, 17 (1994) (“after consulting traditional canons of statutory construction”); *Smith v. United States*, 508 U. S. 223, 239 (1993) (“after seizing every thing from which aid can be derived” (internal quotation marks and alterations omitted)); *Moskal v. United States*, 498 U. S. 103, 108 (1990) (“after resort to the language and structure, legislative history, and motivating policies of the statute” (internal quotation marks omitted)); *Callanan v. United States*, 364 U. S. 587, 596 (1961) (“at the end of the process of construing what Congress has expressed”).

The constitutional avoidance canon is a traditional canon of statutory interpretation. The constitutional avoidance canon is employed to reach a reasonable interpretation of an ambiguous statute. Where, as here, that canon applies and yields such a reasonable interpretation, no grievous ambiguity remains. The rule of lenity has no role to play. Contrary to the Court’s assertion, the canon of constitutional

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avoidance is not “at war” with the rule of lenity. *Ante*, at 465. The canon of constitutional avoidance precedes the rule of lenity because the rule of lenity comes into play (this Court has said countless times) only “*after* consulting traditional canons of statutory construction.” *Hayes*, 555 U. S., at 429 (emphasis added; internal quotation marks omitted). The rule of lenity “comes into operation at the end of the process of construing what Congress has expressed, not at the beginning as an overriding consideration of being lenient to wrongdoers.” *Callanan*, 364 U. S., at 596.

In addition, the rule of lenity is triggered only in the face of “grievous ambiguity.” *Muscarello*, 524 U. S., at 139 (internal quotation marks omitted). To reiterate, § 924(c)(3)(B) is best read to focus on the actual defendant’s actual conduct. But to the extent that there is any ambiguity in § 924(c)(3)(B), that ambiguity is far from grievous.

Second, and relatedly, the Court claims that the canon of constitutional avoidance, as a general matter, cannot be relied upon to broaden the scope of a criminal statute, as opposed to narrowing the scope of a criminal statute. And the Court says that the canon cannot be used here because, in the Court’s view, relying on the constitutional avoidance canon in this case would expand the scope of § 924(c)(3)(B). I disagree for two independent reasons.

To begin with, that theory seems to come out of nowhere. The Court’s novel cabining of the constitutional avoidance canon is not reflected in this Court’s precedents. On the contrary, it contradicts several precedents. This Court has applied the constitutional avoidance canon even when avoiding the constitutional problems would have broadened the statute’s scope. For example, in *United States v. Culbert*, this Court rejected a narrowing construction of the Hobbs Act because that construction would have raised vagueness concerns. 435 U. S. 371, 374 (1978); see also *United States v. Shreveport Grain & Elevator Co.*, 287 U. S. 77, 82 (1932); cf. *United States v. Grace*, 461 U. S. 171, 176 (1983).

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Moreover, the premise of this novel broadening/narrowing theory is flawed. A categorical approach to § 924(c)(3)(B) would not be inherently narrower than a conduct-specific approach. Each approach would sweep in some crimes that the other would not. On the one hand, some crimes that might be deemed categorically violent sometimes may be committed in nonviolent ways. Those crimes would be covered by the categorical approach but not by a conduct-specific approach. On the other hand, some categorically nonviolent crimes are committed in violent ways. Those crimes would not be covered by the categorical approach but would be covered by a conduct-specific approach. See *Johnson*, 576 U. S., at 634–635 (ALITO, J., dissenting).

In sum, the constitutional avoidance canon makes this an especially straightforward case. It is at least fairly possible to read § 924(c)(3)(B) to focus on the actual defendant's actual conduct during the actual crime. End of case.

III

The consequences of the Court's decision today will be severe. By invalidating the substantial-risk prong of § 924(c)(3), the Court's decision will thwart Congress' law enforcement policies, destabilize the criminal justice system, and undermine safety in American communities. If the law required those results, we would have to swallow the consequences. But the law, in my respectful view, does no such thing.

The Court's decision means that people who in the future commit violent crimes with firearms may be able to escape conviction under § 924(c). In enacting § 924(c), Congress sought to keep firearms away from violent criminal situations. Today, the Court invalidates a critical provision designed to achieve that goal. To be sure, many violent crimes still might fall within § 924(c)(3)'s elements clause. But many others might not. When defendants use firearms during conspiracies to commit robbery, arsons, attempted carjackings, and kidnappings, to name just a few, they might